

HOUSE No. 2848

The Commonwealth of Massachusetts

PRESENTED BY:

Jessica Ann Giannino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act aligning disability pensions for violent crimes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>1/15/2025</i>

HOUSE No. 2848

By Representative Giannino of Revere, a petition (accompanied by bill, House, No. 2848) of Jessica Ann Giannino relative to disability pensions for violent crimes. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act aligning disability pensions for violent crimes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Paragraph (a) of subdivision (2) of section 26 of chapter 32 of the General
2 Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following
3 sentence:- This subdivision shall not apply to a member in service who is not able to perform the
4 essential duties of the member's job by reason of violent act injury, as defined in section 7.

5 SECTION 2. Said section 26 of said chapter 32, as so appearing, is hereby further
6 amended by inserting after subdivision (2) the following subdivision:-

7 (2½) Section 7 shall apply to any member in service classified in Group 3 who is an
8 officer of the department of state police if the rating board, after an examination of such officer
9 by a registered physician appointed by it, reports in writing to the state board of retirement that
10 such officer is incapacitated for the performance of duty by reason of violent act injury, as
11 defined in said section 7, occurring during the performance and within the scope of their duty

12 and without contributory negligence on their part, and that such incapacity is likely to be
13 permanent.